UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF NEW YORK

SHEVAUN KASI MISTRY,

Plaintiff,

v.

CORNELL UNIVERSITY, NEEMA KUDVA, SHEA KYTOMMA, SAMANTHA PENNELL, and LESLIE LOK,

Defendants.

Case No. 3:26-cv-1419 (ECC/ML)

MEMORANDUM OF LAW IN SUPPORT OF DEFENDANTS' MOTION TO DISMISS

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PRELIMINARY STATEMENT

Plaintiff Shevaun K. Mistry is a former graduate student in Cornell University's Master of Architecture program who was required to withdraw after years of poor academic performance. The Complaint itself alleges failing grades, academic warnings in Fall 2021 and Fall 2022, a 1.750 GPA, and an inexplicable course of events that led to Plaintiff attending more than one course in which she was not enrolled while failing to attend a course in which she was enrolled. Plaintiff now attempts to recast her academic failures and the resulting required withdrawal from her graduate program as national origin discrimination and retaliation under Title VII, Title VI, the NYSHRL, and 42 U.S.C. § 1981, wage violations under the NYLL and FLSA, and contract and quasi-contract claims. But the Complaint identifies only one allegation that could conceivably be connected to her national origin: an isolated comment that referred to India, rather than Canada, as her home country—a facially non-derogatory remark by a person whom Plaintiff does not allege served on or influenced the Academic Review Committee that required her withdrawal.

Dismissal of the Complaint is required for multiple independent reasons. *First*, Plaintiff's claims challenging Cornell's academic decisions are barred because she failed to timely commence an Article 78 proceeding, the exclusive vehicle for challenging university academic determinations, and she cannot evade Article 78's four-month statute of limitations by repackaging academic grievances as discrimination, retaliation, contract, or quasi-contract claims. *Second*, the discrimination claims fail because the Complaint is devoid of non-conclusory allegations connecting any decision to national origin: the alleged stray remark was made months before Plaintiff's withdrawal by a non-decisionmaker, while the Complaint's own allegations supply legitimate, nondiscriminatory explanations rooted in years of academic deficiency. *Third*, the retaliation claims fail because temporal proximity alone cannot establish causation where Plaintiff was already demonstrably at risk of the adverse action before engaging in protected activity. Fourth, the wage claims are insufficiently pled. Fifth, the contract and

quasi-contract claims identify no specific promise that Cornell allegedly breached, any monies the retaliation claims fail because temporal proximity alone cannot establish causation where owed to Plaintiff or wrongfully withheld by Cornell. The Complaint should therefore be Plaintiff was already demonstrably at risk of the adverse action before engaging in protected dismissed in its entirety.
activity. *Fourth*, the wage claims are insufficiently pled. *Fifth*, the contract and quasi-contract

FACTUAL BACKGROUND

claims identify no specific promise that Cornell allegedly breached, any monies owed to Plaintiff

or wrongfully withheld by Cornell. The Complaint should therefore be dismissed in its entirety.
Plaintiff, a Canadian citizen, matriculated in Cornell's Master of Architecture ("M.Arch.")

FACTUAL BACKGROUND[1]

program in Fall 2021. Compl. ¶ 5. In August 2021, Plaintiff submitted transfer-equivalency

A. Plaintiff's Enrollment and Academic Progress in the M.Arch. Program

materials seeking academic credit for several prerequisite courses, including ARCH 5511, Constructive Drawing I. Id. ¶ 29. Plaintiff never received approval for this transfer of credits.

Plaintiff, a Canadian citizen, matriculated in Cornell's Master of Architecture ("M.Arch.") program in Fall 2021. *Compl.* ¶ 5. In August 2021, Plaintiff submitted transfer-Yet, she admits that she "never attended" the course in Fall 2021, resulting in a failing grade. Id. As a result of Plaintiff's poor academic performance, Plaintiff received Academic Warnings in equivalency materials seeking academic credit for several prerequisite courses, including ARCH both Fall 2021 and Fall 2022. Id. ¶ 57.[1]
5511, Constructive Drawing I. *Id.* ¶ 29. Plaintiff never received approval for this transfer of

A. Plaintiff's Enrollment and Academic Progress in the M.Arch. Program

credits. Yet, she admits that she "never attended" the course in Fall 2021, resulting in a failing During Fall 2024, Plaintiff attended ARCH 5614, Building Technology I, for over two months grade. *Id.* As a result of Plaintiff's poor academic performance, Plaintiff received Academic before she "learned" that she was not enrolled in the course; instead, Plaintiff was enrolled in a Warnings in both Fall 2021 and Fall 2022. *Id.* ¶ 57. different course, ARCH 5911 taught by Professor Leslie Lok ("Lok"). Id. ¶ 24. Plaintiff first

During Fall 2024, Plaintiff attended ARCH 5614, Building Technology I, for over two nine attended ARCH 5911—the class in which she was actually enrolled—on November 1, 2024, months before she "learned" that she was not enrolled in the course; instead, Plaintiff was weeks into the fourteen-week semester. Id. ¶ 25. On November 7, 2024, Lok informed Plaintiff enrolled in a different course, ARCH 5911 taught by Professor Leslie Lok ("Lok"). *Id.* ¶ 24. that, because she had missed more than half of the semester, she could not earn a passing grade and recommended that Plaintiff withdraw from the course to avoid receiving a failing grade. Id. ¶ Plaintiff first attended ARCH 5911—the class in which she was actually enrolled—on November 27. Plaintiff does not allege that she took any steps to withdraw, nor does she allege that she 1, 2024, nine weeks into the fourteen-week semester. *Id.* ¶ 25. On November 7, 2024, Lok successfully completed the course's academic requirements. Having only attended one class informed Plaintiff that, because she had missed more than half of the semester, she could not session and not completing the required work, Plaintiff failed ARCH 5911. Id. ¶¶ 27, 29.

[1] These facts are based solely on the allegations Plaintiff alleged in her Complaint. They are taken as true for purposes of this motion only to the extent required by Federal Rule of Civil Procedure 12(b)(6). *Castagna-Esposito v. Chestnut*, No. 25-1894-cv, 2026 U.S. App. LEXIS 10225, at *3 (2d Cir. Apr. 9, 2026) (noting the requirement on a Rule 12(b)(6) motion to take as true facts alleged in a complaint and to draw all reasonable inferences in the plaintiff's favor).

earn a passing grade and recommended that Plaintiff withdraw from the course to avoid receiving a failing grade. *Id.* ¶ 27. Plaintiff does not allege that she took any steps to withdraw, nor does she allege that she successfully completed the course's academic requirements. Having had failed the prerequisite, ARCH 5911." Id. ¶ 39. Notwithstanding that she was not enrolled, only attended one class session and not completing the required work, Plaintiff failed ARCH Plaintiff began attending ARCH 8912, and "maintains that she did not learn of the drop until 5911. *Id.* ¶¶ 27–29.

January 31, 2025." Id. By the time Plaintiff sought a replacement elective, faculty allegedly denied her petitions for late enrollment because the semester was too far along. Id. ¶ 40.

B. Plaintiff's Immigration Status and Enrollment-Related Issues

Because Plaintiff was dropped from ARCH 8912 and did not timely enroll in a replacement, she fell below the twelve-credit threshold for her F-1 status. Id. Cornell advised on February 14, had failed the prerequisite, ARCH 5911." *Id.* ¶ 39. Notwithstanding that she was not enrolled, 2025, that her F-1 record was closed; after meeting with administrators, Plaintiff's F-1 status was Plaintiff began attending ARCH 8912, and "maintains that she did not learn of the drop until restored by March 3, 2025. Compl. ¶¶ 40–43.

January 31, 2025." *Id.* By the time Plaintiff sought a replacement elective, faculty allegedly

ARGUMENT

denied her petitions for late enrollment because the semester was too far along. *Id.* ¶ 40.

B. Plaintiff's Immigration Status and Enrollment-Related Issues

"To survive a motion to dismiss, a complaint must contain sufficient factual matter . . . to 'state a claim to relief that is plausible on its face.'" Ashcroft v. Iqbal, 556 U.S. 662, 678 (2009) (quoting

Because Plaintiff was dropped from ARCH 8912 and did not timely enroll in a replacement, she fell below the twelve-credit threshold for her F-1 status. *Id.* Cornell advised on Bell Atl. Corp. v. Twombly, 550 U.S. 544, 570 (2007)). A claim has facial plausibility when the February 14, 2025, that her F-1 record was closed; after meeting with administrators, Plaintiff's plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." Id. (citing Twombly, 550 U.S. at 556). To survive F-1 status was restored by March 3, 2025. *Compl.* ¶¶ 40–43.

a Rule 12(b)(6) motion, a plaintiff must plead "more than labels and conclusions, and a formulaic

C. Plaintiff's Graduate Assistant Appointments and Related Payroll Complaints

recitation of the elements of a cause of action will not do." Twombly, 550 U.S. at 555 (internal

Along with her M.Arch. admissions offer, Plaintiff received Graduate Teaching Research quotations, citations, and alterations omitted).

Support (GTRS) positions for Fall 2024 and Spring 2025, each providing tuition support and an

POINT I: ANY CHALLENGE TO PLAINTIFF'S

$8,483 stipend payable in semi-monthly installments. *Compl.* ¶ 21-22. Plaintiff alleges that her

WITHDRAWAL IS UNTIMELY

Fall 2024 paychecks were mailed to an incorrect New York City address and never received but does not allege that she reported the issue during that semester. *Id.* ¶ 36. On October 28, 2024,

Plaintiff cannot evade Article 78 of the New York C.P.L.R. by repackaging her disagreement with Cornell's academic determinations as contract, quasi-contract, discrimination, or retaliation

claims. Her First through Seventh, Tenth, and Eleventh Causes of Action principally challenge that the defendant is liable for the misconduct alleged." *Id.* (citing *Twombly*, 550 U.S. at 556). To survive a Rule 12(b)(6) motion, a plaintiff must plead "more than labels and conclusions, and a formulaic recitation of the elements of a cause of action will not do." *Twombly*, 550 U.S. at 555 (internal quotations, citations, and alterations omitted).

her required withdrawal, the associated loss of her GTRS position, and the academic decisions leading to them. Any such challenge had to be brought within four months of Cornell's determination, but no timely Article 78 proceeding was commenced.

Disputes over grading, academic standing, dismissal, and satisfaction of program requirements fall squarely within the province of Article 78. Ansari v. N.Y. Univ., 1997 U.S. Dist. LEXIS 6863, at *5 (S.D.N.Y. May 16, 1997); Meisner v. Hamilton, Fulton, Montgomery Bd. of Coop. Educ. Servs., 175 A.D.3d 1653 (3d Dept. 2019); Grogan v. Saint Bonaventure University, 91 A.D.2d 855, 855 (4th Dept. 1982) (citing *Tedeshi v. Wagner College*, 49 N.Y.2d 652, 658 (1980)). Academic institutions are better suited to make final decisions on internal academic matters, making Article 78 the appropriate vehicle for such controversies. *Chai v. N.Y. Univ.*, 2024 U.S. Dist. LEXIS 160094, at *16-17 (S.D.N.Y. Sept. 4, 2024) (quoting *Maas v. Cornell*, 94 N.Y.2d 87, 699 N.Y.S.2d 716, 721 N.E.2d 966 (1999)). "As such, 'when litigants fail to avail themselves of [Article 78], courts may justifiably dismiss plenary claims premised upon alleged failures to follow applicable principles set forth in [university] handbooks.'" Id.

POINT I

ANY CHALLENGE TO PLAINTIFF'S WITHDRAWAL IS UNTIMELY

Plaintiff cannot evade Article 78 of the New York C.P.L.R. by repackaging her disagreement with Cornell's academic determinations as contract, quasi-contract, discrimination, or retaliation claims. Her First through Seventh, Tenth, and Eleventh Causes of Action principally challenge her required withdrawal, the associated loss of her GTRS position, and the academic decisions leading to them. Any such challenge had to be brought within four months of Cornell's determination, but no timely Article 78 proceeding was commenced.

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Courts likewise reject efforts to evade Article 78 by labeling academic disputes as contract, tort, or discrimination claims. Doe v. Columbia Univ., 2020 U.S. Dist. LEXIS 56233, *12 (S.D.N.Y. Mar. 31, 2020) ("Since Columbia's authority to expel a student based on an academic violation, as clearly stated, Doe's claim that Columbia's decision to deny him a degree was based on purely financial considerations is merely an attempt to couch this challenge in terms of 'contract' to avoid Article 78's statute of limitations."); Demas v. Levitsky, 291 A.D.2d 653, 660 (3d Dept. 2002) (dismissing breach of contract and negligence claims filed outside of the four-month statute of limitations period as untimely because "[a]lthough couched in terms of 'contract' and 'tort' to avoid the applicable statute of limitations, the claims are directed at Cornell's academic and administrative decision to reject plaintiff's administrative charges against [a university professor], which may be reviewed only in an Article 78 proceeding" (citations omitted)); Zoltanski v. Soldier Sols. of Med., 648 F. Supp. 3d 485, 498 (S.D.N.Y. 2023); Aliq v

New York Univ., 127 A.D.3d 674, 674-675 (1st Dept. 2015) (discrimination claim challenging a university's academic and administrative decision barred by Article 78's four-month limitations period).

Here, Plaintiff challenges academic determinations made over her four years in the M.Arch. program, culminating in the June 9, 2025, required withdrawal and loss of her GTRS position. She alleges errors in the application of transfer-credit equivalency and attendance and grading policies, a variety of incredible enrollment hardships that led her to attend classes in which she was not enrolled (twice) and her disagreement with Cornell's Academic Review Committee, and the comment post-dated years of academic difficulties. It therefore cannot convert the time-barred academic challenge into a timely plenary claim. *See Alrqiq*, 127 A.D.3d at 674-675 (affirming dismissal of discrimination complaint arising out of the plaintiff's non-admission to NYU's Orthodontics Residency Program; holding "[a]lthough 'couched in terms of unlawful discrimination,' the complaint is a 'challenge to a university's academic and administrative decision[] and thus is barred by the four-month statute of limitations for a CPLR article 78 proceeding, the appropriate vehicle for such a challenge" (quoting *Padiyar v. Albert Einstein Coll. of Medicine of Yeshiva Univ.*, 73 A.D.3d 634, 635 (1st Dept. 2010)). Thus, Plaintiff's First through Seventh, Tenth and Eleventh Causes of Action must be dismissed.

POINT II

PLAINTIFF FAILS TO PLAUSIBLY ALLEGE TITLE VII DISCRIMINATION OR RETALIATION

A. Plaintiff's Title VII Discrimination Claim Must Be Dismissed

Plaintiff's First Cause of Action alleges that Cornell discriminated against her based on actual Canadian or perceived Indian national origin through alleged wage delays, denial of administrative support, Kudva's statement, and the June 9, 2025, Notice of Required Withdrawal. *Compl.* ¶ 64. Each theory fails.

POINT II: PLAINTIFF FAILS TO PLAUSIBLY ALLEGE TITLE VII DISCRIMINATION OR RETALIATION

A. Plaintiff's Title VII Discrimination Claim Must Be Dismissed

1. The Majority of the Alleged Discriminatory Acts Are Time-Barred

Title VII requires a plaintiff in New York to file a charge of discrimination with the EEOC within 300 days of the allegedly discriminatory act. 42 U.S.C. § 2000e-5(e)(1); *Schwetz v. Bd. of Coop. Educ. Servs. of Nassau Cnty.*, 2026 U.S. App. LEXIS 5057, at *2 (2d Cir. Feb. 20, 2026) (summary order). The 300-day limitations period begins running on the day each act "happened." *Nat'l R.R. Passenger Corp. v. Morgan*, 536 U.S. 101, 110 (2002); *King v. Aramark Servs.*, 96 F.4th 546, 559 (2d Cir. 2024) (citing *Vega v. Hempstead Union Free Sch. Dist.*, 801 F.3d 72, 78–79 (2d Cir. 2015)).

Plaintiff filed her EEOC Charge on April 3, 2026. *Compl.* ¶ 16. Accordingly, only conduct occurring on or after June 7, 2025, falls within the 300-day limitations period. The following discrete acts on which Plaintiff predicates her discrimination claim occurred outside this period, and any discrimination claim premised thereon is therefore time-barred:

- The purported withholding and delayed payment of wages during January and February 2025 (*see Compl.* ¶¶ 30–37);
- The alleged denial of "administrative support" related to those wage complaints in the same period (*see id.* ¶¶ 38–44);
- Defendant Kudva's February 24, 2025, statement (*see id.* ¶¶ 45–46).

2. Plaintiff's Academic Withdrawal Is Not an Adverse Employment Action

The only alleged act within the 300-day limitations period is the June 9, 2025, Notice of Required Withdrawal. Title VII provides a cause of action only for "unlawful employment practice[s]," 42 U.S.C. § 2000e-2(a), and does not afford protection to students challenging academic decisions concerning their educational status, even where the academic decision arguably has a "tangential effect on [a graduate student's] status as an employee." *Bucklen v. N.Y.*, 2019 U.S. Dist. LEXIS 43869, at *28 (S.D.N.Y. Mar. 18, 2019) ("Title VII relates to

'unlawful employment practice[s],' 42 U.S.C. § 2000e-2(a), and does not afford protection to Rensselaer Polytechnic Inst., 166 F. Supp. 2d 721, 725 (N.D.N.Y. 2001); Weiss v. City Univ. of N.Y., 2019 U.S. Dist. LEXIS 43869, at *28 (S.D.N.Y. Mar. 18, 2019) ("Title VII relates to students alleging discrimination in their education where the claimed discrimination concerned 'unlawful employment practice[s],' 42 U.S.C. § 2000e-2(a), and does not afford protection to the individual's role as a student.").

students alleging discrimination in their education where the claimed discrimination concerned the individual's role as a student."). Plaintiff's complaints concern her academic performance and standing, not an employment decision. By Plaintiff's own allegations, the Academic Review Committee required her withdrawal based on "her academic record, including a stated Spring 2025 semester GPA of 1.750, and previous academic warnings in 2021 and 2022. *Compl.* ¶ 37. Any tangential effect on her teaching assistantship does not transform that academic determination into a Title VII employment action. *Bucklen*, 166 F. Supp. 2d at 725.

and standing, not an employment decision. By Plaintiff's own allegations, the Academic Review Committee required her withdrawal based on "her academic record, including a stated Spring 2025 semester GPA of 1.750, and previous academic warnings in 2021 and 2022. *Compl.* ¶ 37. Any tangential effect on her teaching assistantship does not transform that academic determination into a Title VII employment action. Bucklen, 166 F. Supp. 2d at 725.

3. The Complaint Fails to Plausibly Allege National Origin Discrimination

3. The Complaint Fails to Plausibly Allege National Origin Discrimination

Even if timely and actionable, Plaintiff must plausibly allege that national origin was a motivating factor in an adverse employment action. *McNeill v. Off. of Child. & Fam. Servs.*, 2026 U.S. Dist. LEXIS 61558, at *14 (N.D.N.Y. Mar. 24, 2026) (quoting *Vega*, 801 F.3d at 87 (2d Cir. 2015)). A Title VII discrimination complaint must allege nonconclusory facts making discrimination plausible. *Laporte v. Sullivan*, 801 F. Supp. 3d 98, 102 (N.D.N.Y. 2025) (quoting *EEOC v. Port Auth. of N.Y. & N.J.*, 768 F.3d 247, 254 (2d Cir. 2014)); *see also Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009).

Even if timely and actionable, Plaintiff must plausibly allege that national origin was a motivating factor in an adverse employment action. McNeill v. Off. of Child. & Fam. Servs., 2026 U.S. Dist. LEXIS 61558, at *14 (N.D.N.Y. Mar. 24, 2026) (quoting Vega, 801 F.3d at 87 (2d Cir. 2015)). A Title VII discrimination complaint must allege nonconclusory facts making discrimination plausible. Laporte v. Sullivan, 801 F. Supp. 3d 98, 102 (N.D.N.Y. 2025) (quoting EEOC v. Port Auth. of N.Y. & N.J., 768 F.3d 247, 254 (2d Cir. 2014)); see also Ashcroft v. Iqbal, 556 U.S. 662, 678 (2009).

Plaintiff's Complaint is entirely devoid of factual allegations supporting a plausible inference that Cornell acted with discriminatory animus toward Plaintiff. Instead, it alleges years of unrelated academic, enrollment, payroll, visa, and withdrawal disputes, but no facts connecting any decision to national origin. The Complaint is, at bottom, "little more than plaintiff's grade dispute dressed up as a civil rights action." *Williams v. City Univ. of New York*, 2014 U.S. Dist. LEXIS 118782, at *25–26 (E.D.N.Y. Feb. 7, 2014) (dismissing a graduate student's discrimination claims arising from academic performance and enrollment issues). The only national-origin allegation is Kudva's February 24, 2025, exchange: "February Break isn't long enough to travel to India" and, after Plaintiff said she was from Toronto, "India, Canada, I

Plaintiff's Complaint is entirely devoid of factual allegations supporting a plausible inference that Cornell acted with discriminatory animus toward Plaintiff. Instead, it alleges years of unrelated academic, enrollment, payroll, visa, and withdrawal disputes, but no facts connecting any decision to national origin. The Complaint is, at bottom, "little more than plaintiff's grade dispute dressed up as a civil rights action." Williams v. City Univ. of New York, 2014 U.S. Dist. LEXIS 118782, at *25–26 (E.D.N.Y. Feb. 7, 2014) (dismissing a graduate student's discrimination claims arising from academic performance and enrollment issues). The only national-origin allegation is Kudva's February 24, 2025, exchange: "February Break isn't long enough to travel to India" and, after Plaintiff said she was from Toronto, "India, Canada, I

don't discriminate." *Compl.* ¶¶ 45–46.[2] The probative value of a remark turns on the speaker, timing, content, and context. *Cherry v. New York City Hous. Auth.*, 564 F. Supp. 3d 140 (E.D.N.Y. 2021) (citing *Wanamaker v. Westport Bd. of Educ.*, 899 F. Supp. 2d 193, 208 (D. Conn. 2012)); *Rajaravivarma v. Bd. of Trs. for the Conn. State Univ. Sys.*, 862 F. Supp. 2d 127 (D. Conn. 2012). Each factor defeats an inference of discriminatory intent here.

- *The speaker*: The Complaint does not contain any nonconclusory allegation that Kudva served on or influenced the Academic Review Committee. Remarks by someone other than the decisionmaker have little tendency to show discriminatory motivation. *Tomassi* v. Insignia Fin. Group, Inc., 478 F.3d 111, 115 (2007).

- *The timing*: The remark occurred more than three months before the June 9 withdrawal (and years after Plaintiff's poor academic performance became evident), weakening any inference of a causal nexus.

- *The content*: The remark reflects, at most, a mistaken assumption immediately corrected by a facially non-derogatory statement. A stray remark, even by a decisionmaker, is insufficient without more. *Fletcher v. ABM Building Value*, 775 F. App'x 9, 13 (2d Cir. 2019) (quoting *Danzer v. Norden Sys., Inc.*, 151 F.3d 50, 56 (2d Cir. 1998)).

[2] As discussed above, any claim arising out of this singular comment is time-barred, and the Court need not proceed beyond Point II.A.1. to dismiss Plaintiff's discrimination claims.

2014 U.S. Dist. LEXIS 178782, at *25–26 (E.D.N.Y. Feb. 7, 2014) (dismissing a graduate student's discrimination claims arising from academic performance and enrollment issues).

The only national-origin allegation is Kudva's February 24, 2025, exchange: "February Break isn't long enough to travel to India" and, after Plaintiff said she was from Toronto, "India, Canada, I don't discriminate." *Compl.* ¶¶ 45–46.[2] The probative value of a remark turns on the speaker, timing, content, and context. *Cherry v. New York City Hous. Auth.*, 564 F. Supp. 3d 140 (E.D.N.Y. 2021) (citing *Wanamaker v. Westport Bd. of Educ.*, 899 F. Supp. 2d 193, 208 (D. Conn. 2012)); *Rajaravivarma v. Bd. of Trs. for the Conn. State Univ. Sys.*, 862 F. Supp. 2d 127 (D. Conn. 2012). Each factor defeats an inference of discriminatory intent here.

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CONCLUSION

Plaintiff's claims are nothing more than a transparent attempt to relitigate an academic outcome she dislikes through causes of action that find no support in the facts alleged. Because the Complaint is procedurally barred, factually unsupported, and legally deficient in every respect, it should be dismissed in its entirety and with prejudice.

Dated: October 5, 2026

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